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The dual identity of remix in digital copyright

“In the blink of an eye music went from being rare, expensive and only available through physical media in controlled outlets to being ubiquitous and free worldwide. What a fantastic development” (Albini 19:33-19:49). Recording engineer, Shellac frontman Steve Albini intuitively summed up the spring that the Internet and digital revolution have brought to the music industry. However, since breaching the established order dominated by the record label, the free-flowing market has posed additional challenges to music rights. As Oswald, John mentions in his article “Plunderphonics, or Audio Piracy as a Compositional Prerogative”, “without a quotation system, well-intended correspondences cannot be distinguished from plagiarism and fraud” (6). Oswald’s article was the starting point for my research, and it was his inspiration that led me to become interested in the issue of copyright in digital music. Among the various types of digital music, such as MP3, sampling, and so on, I discovered that remix is a term that deserves more research because Li argued in his article that “the current copyright regime has failed to appreciate the importance of or properly recognize and protect the remix” (115). In this essay, my main argument is that attention should be paid to the dual identity of remix as a “potential infringer” and a “potential infringed” given by digital technology, which would contribute more efficiently to improving the protection of digital music copyrights, which would otherwise lead to a more chaotic situation in the music industry.

To develop this study more clearly, I will start by delving more into the remix's dual identity and the factors that led to the separation of the two identities. Finally, I will provide some comments and potential benefits. Based on the above approaches and

explorations, I've discovered that things with multiple identities are more likely to be in the gray area and undervalued, but they also help to build connections in multiple areas or links, breaking through the limitations of a single identity to solve problems more efficiently. The application in this essay, for example, is that stronger protection of remix copyright law would not only spur its appropriation of other musical resources but also protect the growth of similar nascent things in a healthy and safe direction.

At the outset, we need to be clear about the dual identity of remix. The first is its criminal status as a potential infringement. The way it is generated and the form in which it exists are the key reasons for this characteristic. From the point of view of generation, the remix is a “practice of extracting pieces of existing artworks and remixing them into new work” (Li 113). Unlike the Plunderphonics pop that was created by cutting tapes and records in the last century, “equipped with digital and Internet technologies, users have been able to easily produce remixes and mash-ups” (Li 114). In other words, in the digital age, mechanical equipment will bring a challenge to the legitimacy of music creation (Schumacher 259). Meanwhile, for the form of existence, some digital features such as “ease of replication” (Rao 179) represents a large number of digital sound sources through streaming media. And for distribution, “ease of transmission” (Rao 179) makes illegal downloads, illegal circulation, and unauthorized commercial citations easier to achieve. These are the primary factors that contribute to predation and have resulted in a trend of infringement with remixes that use digital technology.

However, remixes can also be the victim of copyright infringement at the same time. When we want to protect the copyright of a remix, one assumption is that it must be original. Some may question whether a collage of existing works is innovative. Is a finished composition original? In terms of the complexity of the technology and the novelty of the result, “remix is like a compilation or collection but is more than either of them due to its creative nature. It does not simply put together existing data, facts or literary and artistic pieces, rather, it recreates new art and music pieces based on those materials” (Li 120). Therefore, a remix can be regarded as a new work with original characteristics. Remix first faces the issue of copyright certification of originality, whether it is eligible for protection. Furthermore, once it has been identified, the risk of infringement that it entails for other works will be conceivable for it as well, and the infringement procedure will be identical to that outlined in the preceding paragraph.

Through the above analysis, I believe that the dual identity of remix is more significant and typical than that of extreme originality or plagiarism. Given such uniqueness, strengthening copyright protection for remix may be able to kill two birds with one stone. This entails defining the boundaries of remix citation as well as controlling remix itself when mentioning other group creations. At the same time, when it is referenced as a new work, it can again regulate the behavior of subsequent creators. Even though copyright itself is a complex issue, and it has become even more uncertain in the digital age, should we ignore the thorny issue of remix because of this? If we ignore or acquiesce to its free development, what will happen to the music industry, and indeed to all industries involved in copyright, may not be a booming boom, but

rather a chaotic situation that “the growing volume of lawsuits and threats, the number of independent artists publishing remixes has not diminished overall” (Li 127). As a result, I will provide pertinent suggestions for the many subjects involved in the remix, in the hopes that collective efforts will better protect digital music copyright.

The creators are at the source, and the music originates from their hands, whether they are professional musicians or amateurs. Unlike a text, where you may use quotation marks to indicate to the reader that someone else said it or list the original at the conclusion, music is impossible to cite in a concrete sense, which makes it intrinsically more prone to lead to copyright infringement issues. Therefore, my suggestion for creators is to use digital scores, which can appear as partners with digital music, just like traditional paper scores and offline performances. According to my research, “music scores in an electronic format are a fairly recent phenomenon in libraries, usually referenced as part of a music library's collection initiatives” (Nurse 4), which reflects that people nowadays may treat the score more as a “result” to show, but ignore its value as a “starting point” to compose and take references. From my point of view, digital sheet music, as another existing digital music format, is a visual medium for setting notes and arrangements, particularly while learning and writing, and has an objective limiting power. Therefore, the compositional traces left by the score may be a beneficial tool to protect the remix copyright.

According to Modell, “almost entirely user-generated, metadata ‘package’ digital music files and establish value for them by attaching artist names, song names, genre designations, and other information” (350). Metadata, unlike digital sheet music, will

be targeted at users such as customers and distribution corporations. Metadata tracks the development history of a piece by connecting additional relevant information, allowing users to see the process of copyright modifications while also providing evidential support that may be referenced in copyright disputes. In the digital age, users are not the same as they were. The shifting demographics indicate that the legislation should be updated to keep up with the times. The research of Fouce presents a highly brilliant assessment of human activities, as well as a reaction and explanation for why those who are “are unmoved by the antipiracy campaign” (70) . For example, “the users polled in this study want to be able to listen to music on any device they wish, and they positively value the possibility the Internet offers of allowing them to get to know new music and new artists free of charge” (69) . This may be the motivation for some illegal acts. We could argue that listeners desire to hear more free music, and remixers want to be using more free material, so in the process, they are intentionally or unintentionally undermining digital copyright. Legislators can further rationalize the law accordingly and thus increase the enthusiasm of the property rights protection movement.

In the more open musical space created by technology, we should be inclusive and allow music to be as free as the breeze, which may breathe fresh air and thrive, connecting fans and musicians more closely as “the audience was where all the money came from and the bands were where all the music came from” (Albini 18:44-18:50). At the same time, the old concept of property rights is dying out in the uncontrolled public sphere, although Albini is optimistic that “when the automobile replaced the

horse, and all the blacksmiths had to adapt, spending their time making garden gates rather than horseshoes” (43:59-44:08). Perhaps the music industry will also undergo some natural transformation of roles like this, however, both music companies and musicians still need the relevant moral and legal support on digital copyright. Because some of them may still be accustomed to the tradition of physical music, or perhaps out of a determined defense of the private sphere, or even in some cases just to make a profit. Therefore, I would like to stress once again that remix can be a criminal or a victim because it is a rebellious newborn born in the digital age. The protection of it seems like a paradox. But it is its dual identity that provides us with a middle ground to bring to discuss copyright issues, which should not be ignored. In the digital age we, whether musicians, music companies, listeners, or lawmakers, will be expected to maintain a dynamic and changing mindset and should be willing to build a new concept of copyright. The principle of this concept should perhaps be given that the music market can be small and compact, but not big and chaotic. Because protecting the copyright of digital music is in part holding fast to the threshold of access. Hopefully, our era will leave a legacy of more valuable sounds in human history.

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